

		Attorney's Motion to Be Relieved as Counsel – Civil (MC-053). All three mandatory forms must be filed <u>and</u> served on the client <u>and</u> on all persons who have appeared in this action. Here, the proof of service does not reflect service of the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053), and service was made only to the client. Counsel has also not complied with Orange County Local Rule 601.21, which provides as follows: "If an attorney wishes to withdraw from a probate proceeding as attorney of record for the estate representative or any other fiduciary, in addition to the requirements under CCP 284 and CRC 3.1362, the attorney must have a citation issued and served on such motion or petition directing the representative to appear before the court to show cause why the motion or petition should not be granted or why the representative has not taken the steps to complete his or her duties." The client is the Conservator of the person and estate of Michelle Collao, and the court's records do not reflect that a citation was issued to the client. Counsel must file a Citation – Probate (DE-122/GC-322). Once the citation is signed by the court, counsel must have it served on the client in the same manner as a summons. (See Code Civ. Proc. § 415.10.) If the client appears at the hearing, the motion may be granted. Otherwise, the motion will be continued once for compliance with the foregoing.
01429870	Ware – Trust	TENTATIVE RULING Case: Ware – Trust 01429870 Calendar No.: 7 Date: 07/01/2026 MOTION TO ENFORCE SETTLEMENT AGREEMENT AND ENTER JUDGMENT (ROA 49) Before the court is a motion by Petitioners Julia Ann Morgan and Pamela M. Knapp (collectively, "Petitioners") for an order to enforce the settlement agreement and enter judgment pursuant to Code of Civil Procedure section 664.6.

Pertinent Facts

On 9/30/24, litigation between Petitioners and Respondent Cynthia Ware ("Respondent") concerning the Thomas J. Ware and Vivienne R. Ware Family Trust ("Trust") commenced. (ROA 2.)

On 12/11/25, the parties entered into a written and fully-executed Settlement Agreement.

On 12/22/25, Respondent's attorney substituted out of the case. (ROA 34.)

On 1/15/26, Petitioners e-mailed Respondent a Stipulation and Order for her signature, which email was opened but went unanswered, despite a reminder e-mail sent on 1/23/26.

On 1/26/26, Petitioners' counsel sent Respondent a letter, stating that she was required to sign the Stipulation and Order. The letter further stated that Petitioners proposed Petroleum Evaluations Group to complete the appraisal required in paragraph 2.a of the Settlement Agreement.

On 1/30/26, attorney Shayla Chavez e-mailed counsel for Petitioners and stated that she had been retained to represent Respondent. Ms. Chavez forwarded the signed Stipulation and Order and requested a telephonic conference.

On 2/9/26, Respondent emailed Mr. Pawlowski and stated that she had "hired the oil and gas pro" that he had recommended (presumably, Petroleum Evaluations Group) and that she expected to receive a report sometime that month, i.e., February 2026.

On 2/11/26, the fully-executed Stipulation and Order was filed with the court. (ROA 35.)

On 2/17/26, Ms. Chavez failed to attend the scheduled telephonic conference.

On 3/3/26, the Stipulation and Order was signed by the Court. (ROA 37.)

On 3/30/26, Ms. Chavez failed to attend a second scheduled telephonic conference. On this same date, Mr. Pawlowski sent Ms. Chavez a letter summarizing the two missed calls and demanding a copy of the appraisal report.

As of 5/11/26, Ms. Chavez had not responded to the 3/30/26 letter, and this motion was filed.

Merits of the Motion

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6.)

Petitioners contend that Respondent has not performed the terms of paragraph 2.a. of the Settlement Agreement, which states as follows:

Within thirty (30) days of this fully executed AGREEMENT, the Texas Property shall be appraised by a Certified Mineral Appraiser/petroleum engineer, as mutually agreed upon by counsel of record. The Trust shall be responsible for payment of the appraisal. Upon receipt of the appraisal, Cynthia shall have ninety (90) days to pay Julia and Pam fifty percent (50%) of the appraised value ("Texas Property Settlement Sum"). In the event Cynthia fails to pay Julia and Pam the Texas Property Settlement Sum within ninety-days, counsel of record for Julia and Cynthia shall select a mutually agreeable broker to immediately list the Texas Property for sale. The listing price shall be determined by the broker and Cynthia shall accept any offer(s) of no less than ninety- five percent (95%) of the listing price. Julia and Pam shall each receive their twenty- five percent interest in the net sales proceeds directly from escrow.

According to paragraph 2.a., the appraisal of the Texas Property was supposed to be completed by 1/10/26 (i.e., 30 days after the Settlement Agreement was fully executed). However, Petitioners did not propose an expert to Petitioner until 1/26/26, well after the stipulated deadline for the appraisal. Respondent agreed to and hired the proposed appraiser on or around 2/9/26.

Paragraph 2.a. requires Respondent to pay 50% of the appraised value 90 days after "receipt of the appraisal." There is no evidence before the court that Respondent has received an appraisal.

		Counsel should be prepared to discuss the status of the appraisal of the Texas Property.
		[Motion Type]
		TENTATIVE RULING Case: Calendar No.: Date:
01506001	Mahler – Trust	TENTATIVE RULING Case: Mahler – Trust 01506001 Calendar No.: 8 Date: 07/01/2026 MOTION TO DISMISS (ROA 17) Objector and Trustee Roberta Jo Mahler (“Trustee”) moves for an order dismissing the Petition filed by Petitioner David Mahler (“Petitioner”) and/or dismissing the cause of action to order delivery of the decedent’s will. Trustee’s request for judicial notice (ROA 15) of Exhibit 1 is granted. This case involves the Arnold Nelson Mahler and Roberta Jo Mahler Family Trust dated 11/11/86 and completely restated on 11/16/23 (the “Trust”). On 8/21/25, Petitioner filed a “Verified Petition to Compel Production of Trust Documents and Assets; Request for Delivery of Will; and for Accounting of All Estate Assets, Including Non-Trust and Personal Property” (ROA 2)(the “Petition”).